

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
STEVE BOURSIQUOT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ADAN
SUAZORODAS, Tax No. 963771, SERGEANT ADNAN
HUSSAIN, Tax No. 961531, DETECTIVE ALEXANDER
CABALLERY, Tax No. 962284, POLICE OFFICER
JENSON RAJU, Tax No. 959110, LIEUTENANT LARRY
SIMPSON, Tax No. 952243, DETECTIVE ELISA
BATTISTA, Tax No. 959481, POLICE OFFICER CABRINI
SHAW, Tax No. 959474, and POLICE OFFICERS JOHN
DOES #s 1-10,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 26, 2024

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007

POLICE OFFICER ADAN SUAZORODAS, Tax No. 963771, Transit Bureau 34

SERGEANT ADNAN HUSSAIN, Tax No. 961531, Chief of Department Investigation

Review Section

DETECTIVE ALEXANDER CABALLERY, Tax No. 962284, 70th Precinct Detective

Squad

POLICE OFFICER JENSON RAJU, Tax No. 959110, 70th Precinct

LIEUTENANT LARRY SIMPSON, Tax No. 952243, 72nd Precinct

DETECTIVE ELISA BATTISTA, Tax No. 959481, Gun Violence Suppression Division,

Zone 1

POLICE OFFICER CABRINI SHAW, Tax No. 959474, Specialized Training Section

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

STEVE BOURSIQUOT,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER ADAN
SUAZORODAS, Tax No. 963771, SERGEANT ADNAN
HUSSAIN, Tax No. 961531, DETECTIVE ALEXANDER
CABALLERY, Tax No. 962284, POLICE OFFICER
JENSON RAJU, Tax No. 959110, LIEUTENANT LARRY
SIMPSON, Tax No. 952243, DETECTIVE ELISA
BATTISTA, Tax No. 959481, POLICE OFFICER
CABRINI SHAW, Tax No. 959474, and POLICE
OFFICERS JOHN DOES #s 1-10,

JURY TRIAL DEMANDED

Defendants..

----- X

Plaintiff STEVE BOURSIQUOT, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on August 26, 2021, at approximately 1:00 am he was a lawful passenger in the back seat of a vehicle driven by his friend in the vicinity of Ocean Avenue and Farragut Road, Brooklyn, New York 11230, at which time the defendants stopped the vehicle plaintiff was in. The driver of the vehicle immediately pulled the vehicle to the side of the road when the officers indicated that he should pull over. The individual seated in the front passenger seat immediately exited the vehicle when it pulled to the side of the road. He began to run away from the police. The police chased him and alleged that he threw a gun onto the ground as he was fleeing from the police officers. The police officers ultimately caught up to him, arrested him and recovered the gun that he threw onto the ground as he was running. The officers ordered plaintiff and the driver of the vehicle to exit the vehicle, and they followed the officers' instructions. Upon getting out of the vehicle plaintiff was ordered to lay face down on the ground and he complied. The defendants unlawfully handcuffed plaintiff and falsely arrested him without probable cause or legal justification. The officers intended to charge plaintiff with possession of the gun they recovered from the other individual. However, at no time relevant herein did plaintiff have possession, custody, or control over the gun that the other individual threw to the ground. In fact, the police officers did not possess any evidence that suggested

plaintiff had any knowledge that the man in the vehicle had a gun in his possession. Therefore, in order to protect themselves from being disciplined by their superiors at the NYPD defendants decided to charged plaintiff with criminal possession of the gun and with committing an unrelated crime of robbery that occurred nearby shortly before the officers stopped the vehicle. The officers also lacked probable cause to arrest and prosecute plaintiff for any crimes related to the robbery. The officers transported plaintiff to the 70th precinct against his will whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. while plaintiff was detained at the 70th precinct he began having an anxiety attack which caused him to suffer from chest pains and eventually he lost consciousness and passed out. Plaintiff was taken to Maimonides Hospital to have the anxiety treated. Plaintiff was admitted to the hospital and remained there for approximately 4 days. Plaintiff was arraigned from the hospital via video conference in Kings County Criminal Court on August 30, 2021. At arraignment plaintiff was charged with committing serious crimes that he did not commit and that the police officers lacked probable cause to accuse him of committing including theft with a deadly weapon, robbery in this second degree, possession of a firearm, grand larceny, petit larceny, criminal possession of stolen property, attempted assault, menacing, harassment and assault with intent to cause physical injury. Bail was set at arraignment, but plaintiff could not post bail and was remanded to the Manhattan Detention Center. Eventually plaintiff was moved to the OBCC facility located on Rikers Island which was extremely dangerous and had inhumane living conditions for the prisoners at that time. On or about September 1, 2021, at approximately 6 17 AM plaintiff was released from custody at Rikers Island after he posted bail. Plaintiff was required to appear in Kings County Criminal Court on two additional occasions before the court granted a motion to dismiss and seal all charges brought against plaintiff in their entirety on September 30, 2021. Consequently, the criminal prosecution brought against plaintiff terminated in his favor on September 30, 2021.

PARTIES

1. Plaintiff STEVE BOURSIQUOT is a resident of the state of New Jersey.
 2. Defendant POLICE OFFICER ADAN SUAZORODAS, Tax No. 963771, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
 3. Defendant POLICE OFFICER ADAN SUAZORODAS, Tax No. 963771, was at all times relevant herein, assigned to the to the 70th Precinct and is presently assigned to the Transit Bureau 34.
 4. Defendant POLICE OFFICER ADAN SUAZORODAS, Tax No. 963771, is being sued in his individual and official capacity.
 5. Defendant SERGEANT ADNAN HUSSAIN, Tax No. 961531 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
- Defendant SERGEANT ADNAN HUSSAIN, Tax No. 961531, was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the Chief of Department Investigation Review Section.
6. Defendant SERGEANT ADNAN HUSSAIN, Tax No. 961531, is being sued in his individual and official capacity.

7. Defendant DETECTIVE ALEXANDER CABALLERY, Tax No. 962284,, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Defendant DETECTIVE ALEXANDER CABALLERY, Tax No. 962284,, is and was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the 70th Precinct Detective Squad.

9. Defendant DETECTIVE ALEXANDER CABALLERY, Tax No. 962284,, is being sued in his individual and official capacity.

10. Defendant POLICE OFFICER JENSON RAJU, Tax No. 959110, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. Defendant POLICE OFFICER JENSON RAJU, Tax No. 959110, was at all times relevant herein, assigned to the 70th Precinct.

12. Defendant POLICE OFFICER JENSON RAJU, Tax No. 959110, is being sued in his individual and official capacity.

13. Defendant LIEUTENANT LARRY SIMPSON, Tax No. 952243, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. Defendant LIEUTENANT LARRY SIMPSON, Tax No. 9522435, was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the 72nd Precinct.

15. Defendant LIEUTENANT LARRY SIMPSON, Tax No. 952243, is being sued in her individual and official capacity.

16. Defendant DETECTIVE ELISA BATTISTA, Tax No.959481, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

Defendant DETECTIVE ELISA BATTISTA, Tax No.959481, was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the Gun Violence Suppression Division, Zone 1

17. Defendant DETECTIVE ELISA BATTISTA, Tax No.959481, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER CABRINI SHAW, Tax No. 959474, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

Defendant POLICE OFFICER CABRINI SHAW, Tax No. 959474, was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to Specialized Training Section.

19. Defendant POLICE OFFICER CABRINI SHAW, Tax No. 959474, is being sued in his individual and official capacity.

20. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

21. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

22. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

23. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

24. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

25. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

26. On August 26, 2021, at approximately 1:00 am plaintiff was lawfully present in a vehicle that was pulled over by the defendant police officers in the vicinity of Ocean Avenue and Farragut Road, Brooklyn, New York 11230 at which time the defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ a fair trial, without probable cause or legal justification.

27. On or about August 26, 2021 at approximately 1:00 am plaintiff was a lawful passenger in the back seat of a vehicle driven by his friend in the vicinity of Ocean Avenue and Farragut Road, Brooklyn, New York, at which time the defendant police officers pulled the vehicle plaintiff was in, over to the side of the road.

28. The driver of the vehicle immediately pulled the vehicle to the side of the road when the officers indicated that he should pull over.

29. The individual seated in the front passenger seat immediately, and without warning, exited the vehicle when it pulled to the side of the road.

30. The man who exited the vehicle began to run away from the police.

31. The police chased him and alleged that he threw a gun onto the ground as he was fleeing from the police officers.

32. The police officers ultimately caught he man, and arrested him

33. The officers also allege that they recovered the gun that they saw the man throw to the ground as he was running away from them.

34. The officers ordered plaintiff and the driver of the vehicle to exit the vehicle and they followed the officers instructions.

35. Upon getting out of the vehicle plaintiff was ordered to lay face down on the ground and he complied.

36. The defendants. Unlawfully handcuffed plaintiff and falsely arrested him without probable cause or legal justification.

37. The officers intended to charge plaintiff with possession of the gun that they recovered from the other individual who allegedly threw it onto the ground as he ran from the officers.

38. . However, at no time relevant herein did plaintiff have possession, custody, or control over the gun that the other individual threw to the ground.

39. In fact, the defendant police officers did not possess any evidence that suggested plaintiff had any knowledge that the man in the vehicle had a gun in his possession,

40. Additionally, the defendants falsely arrested and maliciously prosecuted plaintiff for allegedly committing another crime that the officers lacked probable cause to accuse him of committing.

41. Shortly before the defendants pulled over the vehicle that plaintiff was in, there was a robbery that occurred nearby.

42. The robbery victim was hit in the back of her head with an unknown object causing her to suffer injuries to the back of her head.

43. After she was hit in the head the perpetrators robbed her of her belongings.

44. Although defendants knew that the crime victim was attacked from behind and was unable to see the perpetrators of the crime well enough to identify them, the defendants wanted to receive credit from the NYPD for finding and identifying the perpetrator of that crime because defendants knew that their superiors would view such an arrest in a very favorable light.

45. Defendants told the crime victim that they believe they caught the perpetrators of her crime.

46. Defendants further informed the crime victim that the perpetrators of her crime were placed under arrest under arrest.

47. . Defendants explained to the crime victim that it would be extremely helpful to them if the crime victim could identify the men as the perpetrators of her crime if defendants drove her past the perpetrators.

48. Defendants explained to the crime victim that if she was able to positively identify the perpetrators of her crime she would likely be protecting other individuals who would be future victims of the perpetrators.

49. The defendants drove the crime victim past the location where defendants had plaintiff and his friends standing with other police officers, in handcuffs.

50. When the defendants drove the crime victim past the location where plaintiff and his friends were standing, it became abundantly clear to the crime victim that plaintiff and his friends were the individuals that the police officers wanted her to positively identify as the individuals who robbed her.

51. The defendants explained to the crime victim that they just needed her to verify that the men standing on the side of the

52. When the defendants drove the crime victim past the location where plaintiff was standing in handcuffs, the defendants asked the crime victim to verify that plaintiff and his friends were the people who robbed her,.

53. Upon information and belief, even though the crime victim did not see the individuals who attacked her very well and could not provide the officers with an accurate description of what they looked like, the crime victim cooperated with the defendants and positively identified plaintiff and his friends as the perpetrators of the crime.

54. . The crime victim believed that the reason the men were standing on the side of the road in handcuffs was because the officers arrested them because the officers had an independent reason to believe that plaintiff and his friends were the perpetrators of the crime.

55. The defendants never obtained any additional evidence that suggested plaintiff had any knowledge of or involvement with the robbery of the crime victim.

56. The officers falsely arrested plaintiff, without probable cause, and charged him with robbery of the crime victim and possession of the gun that another person possessed and that was never in his possession custody or control.

57. The defendant officers transported plaintiff to the 70th precinct against his will where plaintiff was unlawfully searched fingerprinted photographed and detained in a filthy holding cell for many hours.

58. While plaintiff was detained at the 70th precinct, it became clear to plaintiff that the defendants were charging him with very serious crimes he did not commit.

59. As it became clearer to plaintiff that he was going to be charged with very serious crimes that could carry lengthy prison sentences, plaintiff had a serious anxiety attack.

60. . The anxiety attack caused plaintiff to suffer from chest pain, and he ultimately passed out and lost consciousness.

61. Plaintiff was taken to Maimonides Hospital to receive treatment for his anxiety.

62. Plaintiff was admitted to the hospital and remained at the hospital for approximately 4 days.

63. Plaintiff was arraigned via video conference on August 30, 2021, while he was still admitted to the hospital.

64. Three men plaintiff was charged with committing serious crimes that he did not commit and that the police officers lacked probable cause to accuse him of committing, umm including theft with a deadly weapon, robbery in this second degree, possession of a firearm, grand larceny, Petit larceny, criminal possession of stolen property, attempted assault, menacing, harassment and assault with intent to cause physical injury.

65. Bail was set at arraignment, but plaintiff could not post bail, and he was remanded to the Manhattan Detention Center August 30, 2021.

66. On September 1, 2021, plaintiff was moved to the OBCC facility located on Rikers Island, which was an extremely dangerous place at that time, in part because there were not enough correction officers present during COVID.

67. . The living conditions for prisoners at the OBCC facility on Rikers Island during COVID were inhumane.

68. Prisoners were expected to sleep on a filthy floor, not far from a toilet that was clogged and overflowing.

69. There were large rats running around the facility in areas where the prisoners were expected to sleep.

70. Plaintiff was locked in a small cell with approximately 30 other prisoners.

71. On several occasions the correction officers sprayed a chemical agent on all of the prisoners detained in the cell with him, and the chemical agent caused plaintiff's entire body to feel like it was burning, and plaintiff could not breathe when the chemicals were in the air for an extended period of time.

72. Additionally, the prisoners were not fed 3 meals a day, and the prisoners were not given regular access to showers.

73. The prisoners didn't have access to the law library and even when a prisoner required medical treatment, most of the time the prisoners were not permitted to go to the clinic.

74. In fact the OBCC facility was primarily run by the dominant gang in each housing area during this time period because there were often no correction officers on duty in certain housing areas and if there was a correction officer on duty in a housing area, that correction officer was severely outnumbered by prisoners and usually the correction officers deferred to the prisoners regarding the rules of the housing area.

75. There were not enough correction officers present at the OBCC facility while plaintiff was there, to control the building.

76. While plaintiff was detained on Rikers Island he was attacked and assaulted by other prisoners as well as correction officers on several occasions.

77. Plaintiff experienced bruising throughout his body from being attacked so many times while he was a prisoner on Riker's Island.

78. On or about September 1, 2021, at approximately 6 17 AM plaintiff was released from custody at Rikers Island after he posted bail.

79. Plaintiff was required to appear in Kings County Criminal Court on two additional occasions before the court granted a motion to dismiss and seal all charges brought against plaintiff in their entirety on September 30, 2021.

80. Consequently, the criminal prosecution brought against plaintiff terminated in his favor on September 30, 2021.

81. The defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process.

82. \. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

83. The officers provided the DA's office with false, misleading, and incomplete evidence that purportedly formed their basis for arresting plaintiff and charging him with crimes.

84. A criminal prosecution was initiated against plaintiff and plaintiff was maliciously prosecuted based upon the false and misleading allegations made by the defendant officers.

85. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

86. Plaintiff was maliciously prosecuted based upon the false and misleading allegations made by the defendant officers.

87. Plaintiff was released from custody on his own recognizance at arraignment.

88. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

89. Defendants fabricated the allegations made against plaintiff that were sworn to under the penalty of perjury in the criminal court complaint.

90. The criminal proceedings terminated in plaintiff's favor.

91. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested and prosecuted for crimes he did not commit.

92. Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in the criminal prosecution.

93. The defendant officers' false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause.

94. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

95. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

96. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

97. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, false imprisonment, denial of due process and malicious prosecution because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers

unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

98. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

99. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

100. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

101. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

104. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

106. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

109. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

111. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

112. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

115. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

117. Defendants lacked probable cause to search plaintiff.

118. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

121. Plaintiff repeats and realleges paragraphs 1 through 120 as if fully set forth herein.

122. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

123. Defendants commenced and continued a criminal proceeding against plaintiff.

124. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

125. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

126. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights **Denial of Due Process/ Right to a Fair Trial**

128. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 127 with the same force and effect as if fully set forth herein.

129. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

130. Defendants filled out false and misleading police reports and a criminal court complaint and forwarded them to the Kings County Criminal Court.

131. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

132. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

133. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

134. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 133 with the same force and effect as if more fully set forth at length herein.

135. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

136. Defendants failed to intervene to prevent the unlawful conduct described herein.

137. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

138. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

139. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 138 with the same force and effect as if more fully set forth at length herein.

140. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, and denied the right to due process, without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

141. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

142. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

143. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

144. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

145. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

146. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

147. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

148. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of,

and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

149. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

150. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

151. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff STEVE BOURSIQUOT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 26, 2024

By:



DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
August 26, 2024

David Hazan

DAVID M. HAZAN